

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2298

By: Hilbert

AS INTRODUCED

An Act relating to the practice of nursing; providing for independent prescriptive authority of Advanced Practice Registered Nurses who meet certain requirements; providing certain construction; stating application criteria; specifying duration of authority; authorizing supervision by Advanced Practice Registered Nurse with independent prescriptive authority who meets certain requirements; authorizing Oklahoma Board of Nursing to prescribe additional qualifications; providing for application approval, denial, reapplication, fees, and independent prescriptive authority revocation; amending 59 O.S. 2021, Section 353.1, as amended by Section 6, Chapter 288, O.S.L. 2022 (59 O.S. Supp. 2023, Section 353.1), which relates to definitions used in the Oklahoma Pharmacy Act; modifying and adding definitions; amending 59 O.S. 2021, Section 353.1a, which relates to prescriptive authority of Advanced Practice Registered Nurses; modifying prescriptive authority of certain Advanced Practice Registered Nurses; amending 59 O.S. 2021, Section 567.3a, which relates to definitions used in the Oklahoma Nursing Practice Act; modifying and adding definitions; amending 59 O.S. 2021, Section 567.4a, which relates to prescriptive authority; specifying authority of the Board to grant prescriptive authority; directing the Board to promulgate certain rules; modifying references; conforming language; clarifying certain educational requirement; amending 59 O.S. 2021, Section 567.5a, which relates to Advanced Practice Registered Nurse license; providing for independent prescriptive authority by endorsement; amending 63 O.S. 2021, Section 2-312, as amended by Section 2, Chapter 184, O.S.L. 2022 (63 O.S. Supp. 2023, Section 2-312), which relates to

1 controlled dangerous substances; conforming language
2 relating to supervision requirement; updating
3 statutory language; updating statutory references;
4 providing for codification; and providing an
5 effective date.

6 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

7 SECTION 1. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 567.4c of Title 59, unless there
9 is created a duplication in numbering, reads as follows:

10 A. 1. An Advanced Practice Registered Nurse recognized by the
11 Oklahoma Board of Nursing as a Certified Nurse Practitioner,
12 Clinical Nurse Specialist, or Certified Nurse-Midwife who has
13 completed a minimum of six thousand two hundred forty (6,240) hours
14 of practice with prescriptive authority supervised by a physician or
15 completed an accredited residency program may apply to the Oklahoma
16 Board of Nursing for authority to prescribe and order independent of
17 supervision. This paragraph shall not be construed to exclude
18 practice hours with supervised prescriptive authority obtained prior
19 to the effective date of this act from being counted toward the
20 hours required in this paragraph.

21 2. The application for independent prescriptive authority shall
22 include proof that the Certified Nurse Practitioner, Clinical Nurse
23 Specialist, or Certified Nurse-Midwife:
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- 1 a. holds a valid, current license in the appropriate
2 Advanced Practice Registered Nurse role issued by the
3 Board and is in good standing with the Board, and
4 b. has completed a minimum of six thousand two hundred
5 forty (6,240) hours of practice with prescriptive
6 authority supervised by a physician or completed an
7 accredited residency program.

8 3. Independent prescriptive authority granted under this
9 subsection shall be valid until the expiration of the current
10 license to practice and may be renewed upon application to the Board
11 at the same time and for the same period as the renewal of the
12 license to practice.

13 B. The Board shall review any application submitted under this
14 section and shall approve or deny the application, stating the
15 reason or reasons for denial, if denied. If denied, the applicant
16 may reapply using the process prescribed by subsection A of this
17 section.

18 C. The Board may suspend or revoke independent prescriptive
19 authority granted under this section for good cause at any time.

20 D. The Board may establish a fee for the review of initial and
21 renewal applications under the provisions of this section.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 567.5b of Title 59, unless there
24 is created a duplication in numbering, reads as follows:

1 A. The Oklahoma Board of Nursing, the State Board of Medical
2 Licensure and Supervision, and the State Board of Osteopathic
3 Examiners shall collaborate to promulgate a uniform set of rules:

4 1. Governing supervision requirements of an Advanced Practice
5 Registered Nurse who has not obtained independent prescriptive
6 authority under Section 1 of this act; and

7 2. That impose a reasonable limit on the monetary amount that a
8 supervising physician may charge an Advanced Practice Registered
9 Nurse for supervision. Nothing in this paragraph shall be construed
10 to require a supervising physician to charge a fee for supervision.

11 B. The Oklahoma Board of Nursing, the State Board of Medical
12 Licensure and Supervision, and the State Board of Osteopathic
13 Examiners may collaborate to promulgate a uniform set of rules
14 imposing a reasonable limit on the number of Advanced Practice
15 Registered Nurses that a physician may supervise; provided, however,
16 such rules shall allow a physician to seek a waiver to exceed this
17 limit for such purposes as may be determined by the Boards in the
18 uniform set of rules.

19 C. The State Board of Medical Licensure and Supervision and the
20 State Board of Osteopathic Examiners shall make available, and keep
21 updated, in a conspicuous location on the Internet website of each
22 Board a list of physicians who are available to supervise Advanced
23 Practice Registered Nurses. The Boards shall develop procedures
24 necessary for the implementation of this section.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 355.5 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 A. A licensed practitioner, or the employer of the licensed
5 practitioner on his or her behalf, shall carry malpractice insurance
6 or demonstrate proof of financial responsibility in a minimum amount
7 of One Million Dollars (\$1,000,000.00) per occurrence and Three
8 Million Dollars (\$3,000,000.00) in the aggregate per year.

9 B. A licensed practitioner who is employed by or under contract
10 with a federal agency that carries malpractice insurance in any
11 amount on behalf of the licensed practitioner shall be deemed in
12 compliance with subsection A of this section when practicing under
13 such federal employment or contract. However, to the extent the
14 licensed practitioner practices outside of such federal employment
15 or contract, the licensed practitioner, or the employer of the
16 licensed practitioner, shall comply with subsection A of this
17 section.

18 SECTION 4. AMENDATORY 59 O.S. 2021, Section 353.1, as
19 amended by Section 6, Chapter 288, O.S.L. 2022 (59 O.S. Supp. 2023,
20 Section 353.1), is amended to read as follows:

21 Section 353.1. For the purposes of the Oklahoma Pharmacy Act:

22 1. "Accredited program" means those seminars, classes,
23 meetings, work projects, and other educational courses approved by
24

1 the ~~Board~~ State Board of Pharmacy for purposes of continuing
2 professional education;

3 2. "Act" means the Oklahoma Pharmacy Act;

4 3. "Administer" means the direct application of a drug, whether
5 by injection, inhalation, ingestion or any other means, to the body
6 of a patient;

7 4. "Assistant pharmacist" means any person presently licensed
8 as an assistant pharmacist in ~~the State of Oklahoma~~ this state by
9 the Board pursuant to Section 353.10 of this title and for the
10 purposes of the Oklahoma Pharmacy Act shall be considered the same
11 as a pharmacist, except where otherwise specified;

12 5. "Board" or "State Board" means the State Board of Pharmacy;

13 6. "Certify" or "certification of a prescription" means the
14 review of a filled prescription by a licensed pharmacist or a
15 licensed practitioner with dispensing authority to confirm that the
16 medication, labeling, and packaging of the filled prescription ~~are~~
17 is accurate and ~~meet~~ meets all requirements prescribed by state and
18 federal law. For the purposes of this paragraph, "licensed
19 practitioner" shall not include optometrists with dispensing
20 authority;

21 7. "Chemical" means any medicinal substance, whether simple or
22 compound or obtained through the process of the science and art of
23 chemistry, whether of organic or inorganic origin;

1 8. "Compounding" means the combining, admixing, mixing,
2 diluting, pooling, reconstituting or otherwise altering of a drug or
3 bulk drug substance to create a drug. Compounding includes the
4 preparation of drugs or devices in anticipation of prescription drug
5 orders based on routine, regularly observed prescribing patterns;

6 9. "Continuing professional education" means professional,
7 pharmaceutical education in the general areas of the socioeconomic
8 and legal aspects of health care; the properties and actions of
9 drugs and dosage forms; and the etiology, characteristics and
10 therapeutics of the diseased state;

11 10. "Dangerous drug", "legend drug", "prescription drug" or "Rx
12 Only" means a drug:

- 13 a. for human use subject to 21 U.S.C. 353(b)(1), or
- 14 b. is labeled "Prescription Only", or labeled with the
15 following statement: "Caution: Federal law restricts
16 this drug ~~except for~~ to use by or on the order of a
17 licensed veterinarian.";

18 11. "Director" means the Executive Director of the State Board
19 of Pharmacy unless context clearly indicates otherwise;

20 12. "Dispense" or "dispensing" means the interpretation,
21 evaluation, and implementation of a prescription drug order
22 including the preparation and delivery of a drug or device to a
23 patient or a patient's agent in a suitable container appropriately
24 labeled for subsequent administration to, or use by, a patient.

1 Dispense includes sell, distribute, leave with, give away, dispose
2 of, deliver or supply;

3 13. "Dispenser" means a retail pharmacy, hospital pharmacy, a
4 group of chain pharmacies under common ownership and control that do
5 not act as a wholesale distributor, or any other person authorized
6 by law to dispense or administer prescription drugs, and the
7 affiliated warehouses or distributions of such entities under common
8 ownership and control that do not act as a wholesale distributor.
9 For the purposes of this paragraph, ~~"dispenser"~~ dispenser does not
10 mean a person who dispenses only products to be used in animals in
11 accordance with 21 U.S.C. 360b(a) (5);

12 14. "Distribute" or "distribution" means the sale, purchase,
13 trade, delivery, handling, storage, or receipt of a product, and
14 does not include the dispensing of a product pursuant to a
15 prescription executed in accordance with 21 U.S.C. 353(b) (1) or the
16 dispensing of a product approved under 21 U.S.C. 360b(b); provided,
17 taking actual physical possession of a product or title shall not be
18 required;

19 15. "Doctor of Pharmacy" means a person licensed by the Board
20 to engage in the practice of pharmacy. The terms "pharmacist",
21 "D.Ph.", and "Doctor of Pharmacy" shall be interchangeable and shall
22 have the same meaning wherever they appear in the Oklahoma Statutes
23 and the rules promulgated by the Board;

24

1 16. "Drug outlet" means all manufacturers, repackagers,
2 outsourcing facilities, wholesale distributors, third-party
3 logistics providers, pharmacies, and all other facilities which are
4 engaged in dispensing, delivery, distribution or storage of
5 dangerous drugs;

6 17. "Drugs" means all medicinal substances and preparations
7 recognized by the United States ~~Pharmacopeia~~ Pharmacopeia and
8 National Formulary, or any revision thereof, and all substances and
9 preparations intended for external and/or internal use in the cure,
10 diagnosis, mitigation, treatment or prevention of disease in humans
11 or animals and all substances and preparations, other than food,
12 intended to affect the structure or any function of the body of a
13 human or animals;

14 18. "Drug sample" means a unit of a prescription drug packaged
15 under the authority and responsibility of the manufacturer that is
16 not intended to be sold and is intended to promote the sale of the
17 drug;

18 19. "Durable medical equipment" has the same meaning as
19 provided by ~~Section 2 of this act~~ Section 375.2 of this title;

20 20. "Filled prescription" means a packaged prescription
21 medication to which a label has been affixed which contains such
22 information as is required by the Oklahoma Pharmacy Act;
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1 21. "Hospital" means any institution licensed as a hospital by
2 this state for the care and treatment of patients, or a pharmacy
3 operated by the Oklahoma Department of Veterans Affairs;

4 22. "Licensed practitioner" means:

- 5 a. an allopathic physician,
- 6 b. an osteopathic physician,
- 7 c. a podiatric physician,
- 8 d. a dentist,
- 9 e. a veterinarian ~~or~~,
- 10 f. an optometrist, or
- 11 g. a Certified Nurse Practitioner, Clinical Nurse
12 Specialist, or Certified Nurse-Midwife who has
13 obtained independent prescriptive authority under
14 Section 1 of this act,

15 licensed to practice and authorized to prescribe dangerous drugs
16 within the scope of practice of such practitioner;

17 23. "Manufacturer" or "virtual manufacturer" means with respect
18 to a product:

- 19 a. a person that holds an application approved under 21
20 U.S.C. 355 or a license issued under 42 U.S.C. 262 for
21 such product, or if such product is not the subject of
22 an approved application or license, the person who
23 manufactured the product,

- b. a co-licensed partner of the person described in subparagraph a of this paragraph that obtains the product directly from a person described in this subparagraph or subparagraph a of this paragraph,
- c. an affiliate of a person described in subparagraph a or b of this paragraph who receives the product directly from a person described in this subparagraph or in subparagraph a or b of this paragraph, or
- d. a person who contracts with another to manufacture a product;

24. "Manufacturing" means the production, preparation, propagation, compounding, conversion or processing of a device or a drug, either directly or indirectly by extraction from substances of natural origin or independently by means of chemical or biological synthesis and includes any packaging or repackaging of the substances or labeling or relabeling of its container, and the promotion and marketing of such drugs or devices. The term ~~"manufacturing"~~ manufacturing also includes the preparation and promotion of commercially available products from bulk compounds for resale by licensed pharmacies, licensed practitioners or other persons;

25. "Medical gas" means those gases including those in liquid state upon which the manufacturer or distributor has placed one of several cautions, such as "Rx Only", in compliance with federal law;

1 26. "Medical gas order" means an order for medical gas issued
2 by a licensed prescriber;

3 27. "Medical gas distributor" means a person licensed to
4 distribute, transfer, wholesale, deliver or sell medical gases on
5 drug orders to suppliers or other entities licensed to use,
6 administer or distribute medical gas and may also include a patient
7 or ultimate user;

8 28. "Medical gas supplier" means a person who dispenses medical
9 gases on drug orders only to a patient or ultimate user;

10 29. "Medicine" means any drug or combination of drugs which has
11 the property of curing, preventing, treating, diagnosing or
12 mitigating diseases, or which is used for that purpose;

13 30. "Nonprescription drugs" means medicines or drugs which are
14 sold without a prescription and which are prepackaged for use by the
15 consumer and labeled in accordance with the requirements of the
16 statutes and regulations of this state and the federal government.
17 Such items shall also include medical and dental supplies and
18 bottled or nonbulk chemicals which are sold or offered for sale to
19 the general public if such articles or preparations meet the
20 requirements of the Federal Food, Drug, and Cosmetic Act, 21
21 U.S.C.A., Section 321 et seq.;

22 31. "Outsourcing facility" including "virtual outsourcing
23 facility" means a facility at one geographic location or address
24 that:

- a. is engaged in the compounding of sterile drugs,
- b. has elected to register as an outsourcing facility,
- and
- c. complies with all requirements of 21 U.S.C. 353b;

32. "Package" means the smallest individual saleable unit of product for distribution by a manufacturer or repackager that is intended by the manufacturer for ultimate sale to the dispenser of such product. For the purposes of this paragraph, "individual saleable unit" means the smallest container of a product introduced into commerce by the manufacturer or repackager that is intended by the manufacturer or repackager for individual sale to a dispenser;

33. "Person" means an individual, partnership, limited liability company, corporation or association, unless the context otherwise requires;

34. "Pharmacist-in-charge" or "PIC" means the pharmacist licensed in this state responsible for the management control of a pharmacy and all other aspects of the practice of pharmacy in a licensed pharmacy as defined by Section 353.18 of this title;

35. "Pharmacy" means a place regularly licensed by the State Board of Pharmacy in which prescriptions, drugs, medicines, chemicals and poisons are compounded or dispensed or such place where pharmacists practice the profession of pharmacy, or a pharmacy operated by the Oklahoma Department of Veterans Affairs;

1 36. "Pharmacy technician", "technician", "Rx tech", or "tech"
2 means a person issued a Technician permit by the State Board of
3 Pharmacy to assist the pharmacist and perform nonjudgmental,
4 technical, manipulative, non-discretionary functions in the
5 prescription department under the immediate and direct supervision
6 of a pharmacist;

7 37. "Poison" means any substance which when introduced into the
8 body, either directly or by absorption, produces violent, morbid or
9 fatal changes, or which destroys living tissue with which such
10 substance comes into contact;

11 38. "Practice of pharmacy" means:

- 12 a. the interpretation and evaluation of prescription
13 orders,
- 14 b. the compounding, dispensing, administering and
15 labeling of drugs and devices, except labeling by a
16 manufacturer, repackager or distributor of
17 nonprescription drugs and commercially packaged legend
18 drugs and devices,
- 19 c. the participation in drug selection and drug
20 utilization reviews,
- 21 d. the proper and safe storage of drugs and devices and
22 the maintenance of proper records thereof,
- 23 e. the responsibility for advising by counseling and
24 providing information, where professionally necessary

- 1 or where regulated, of therapeutic values, content,
2 hazards and use of drugs and devices,
3 f. the offering or performing of those acts, services,
4 operations or transactions necessary in the conduct,
5 operation, management and control of a pharmacy, or
6 g. the provision of those acts or services that are
7 necessary to provide pharmaceutical care;

8 39. "Preparation" means an article which may or may not contain
9 sterile products compounded in a licensed pharmacy pursuant to the
10 order of a licensed prescriber;

11 40. "Prescriber" means a person licensed in this state who is
12 authorized to prescribe dangerous drugs within the scope of practice
13 of the person's profession;

14 41. "Prescription" means and includes any order for drug or
15 medical supplies written or signed, or transmitted by word of mouth,
16 telephone or other means of communication:

- 17 a. by a licensed prescriber,
18 b. ~~under the supervision of an Oklahoma licensed~~
19 ~~practitioner, an Oklahoma licensed advanced practice~~
20 ~~registered nurse or an Oklahoma licensed by a~~
21 physician assistant pursuant to a practice agreement,
22 ~~or~~
23 c. (1) under the supervision of a supervising physician,
24 by a Certified Nurse Practitioner, Clinical Nurse

1 Specialist, or Certified Nurse-Midwife licensed
2 in this state who has not obtained independent
3 prescriptive authority under Section 1 of this
4 act, or

5 (2) by a Certified Nurse Practitioner, Clinical Nurse
6 Specialist, or Certified Nurse-Midwife licensed
7 in this state who has obtained independent
8 prescriptive authority under Section 1 of this
9 act, or

10 d. by an Oklahoma licensed wholesaler or distributor as
11 authorized in Section 353.29.1 of this title;

12 42. "Product" means a prescription drug in a finished dosage
13 form for administration to a patient without substantial further
14 manufacturing, such as capsules, tablets, and lyophilized products
15 before reconstitution. "Product" does not include blood components
16 intended for transfusion, radioactive drugs or biologics and medical
17 gas;

18 43. "Repackager", including "virtual repackager", means a
19 person who owns or operates an establishment that repacks and
20 relabels a product or package for further sale or distribution
21 without further transaction;

22 44. "Sterile drug" means a drug that is intended for parenteral
23 administration, an ophthalmic or oral inhalation drug in aqueous
24

1 format, or a drug that is required to be sterile under state and
2 federal law;

3 45. "Supervising physician" means an individual holding a
4 current license to practice as a physician from the State Board of
5 Medical Licensure and Supervision, pursuant to the provisions of the
6 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
7 Act, or the State Board of Osteopathic Examiners, pursuant to the
8 provisions of the Oklahoma Osteopathic Medicine Act, who supervises
9 ~~an advanced practice registered nurse~~ a Certified Nurse
10 Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife
11 as defined in Section 567.3a of this title who has not obtained
12 independent prescriptive authority under Section 1 of this act, and
13 who is not in training as an intern, resident, or fellow. ~~To be~~
14 ~~eligible to supervise an advanced practice registered nurse, such~~
15 The supervising physician shall remain in compliance with the rules
16 promulgated by the State Board of Medical Licensure and Supervision
17 or the State Board of Osteopathic Examiners;

18 46. "Supportive personnel" means technicians and auxiliary
19 supportive persons who are regularly paid employees of a pharmacy
20 who work and perform tasks in the pharmacy as authorized by Section
21 353.18A of this title;

22 47. "Third-party logistics provider" including "virtual third-
23 party logistics provider" means an entity that provides or
24 coordinates warehousing, or other logistics services of a product in

1 interstate commerce on behalf of a manufacturer, wholesale
2 distributor, or dispenser of a product but does not take ownership
3 of the product, nor have responsibility to direct the sale or
4 disposition of the product. For the purposes of this paragraph,
5 "third-party logistics provider" does not include shippers and the
6 United States Postal Service;

7 48. "Wholesale distributor" including "virtual wholesale
8 distributor" means a person other than a manufacturer, a
9 manufacturer's co-licensed partner, a third-party logistics
10 provider, or repackager engaged in wholesale distribution as defined
11 by 21 U.S.C. 353(e)(4) as amended by the Drug Supply Chain Security
12 Act;

13 49. "County jail" means a facility operated by a county for the
14 physical detention and correction of persons charged with, or
15 convicted of, criminal offenses or ordinance violations or persons
16 found guilty of civil or criminal contempt;

17 50. "State correctional facility" means a facility or
18 institution that houses a prisoner population under the jurisdiction
19 of the Department of Corrections;

20 51. "Unit dose package" means a package that contains a single
21 dose drug with the name, strength, control number, and expiration
22 date of that drug on the label; and
23
24

1 52. "Unit of issue package" means a package that provides
2 multiple doses of the same drug, but each drug is individually
3 separated and includes the name, lot number, and expiration date.

4 SECTION 5. AMENDATORY 59 O.S. 2021, Section 353.1a, is
5 amended to read as follows:

6 Section 353.1a. A. ~~Prescribing~~ 1. Prescriptive authority
7 shall be allowed, under the medical direction of a supervising
8 physician, for ~~an advanced practice nurse~~ a licensed Advanced
9 Practice Registered Nurse recognized by the Oklahoma Board of
10 Nursing ~~in one of the following categories: advanced registered~~
11 ~~nurse practitioners, clinical nurse specialists, or certified nurse-~~
12 ~~midwives~~ as a Certified Nurse Practitioner, Clinical Nurse
13 Specialist, or Certified Nurse-Midwife who has not obtained
14 independent prescriptive authority under Section 1 of this act.

15 2. Prescriptive authority shall be allowed, independent of the
16 medical direction of a supervising physician, for a licensed
17 Advanced Practice Registered Nurse recognized by the Oklahoma Board
18 of Nursing as a Certified Nurse Practitioner, Clinical Nurse
19 Specialist, or Certified Nurse-Midwife who has obtained independent
20 prescriptive authority under Section 1 of this act.

21 B. The ~~advanced practice nurse~~ Advanced Practice Registered
22 Nurse may write or sign, or transmit by word of mouth, telephone or
23 other means of communication an order for drugs or medical supplies
24 that is intended to be filled, compounded, or dispensed by a

1 pharmacist. The supervising physician, if applicable, and the
2 ~~advanced practice nurse~~ prescribing Advanced Practice Registered
3 Nurse shall be identified at the time of origination of the
4 prescription and the name of the ~~advanced practice nurse~~ prescribing
5 Advanced Practice Registered Nurse shall be printed on the
6 prescription label.

7 ~~B.~~ C. Pharmacists may dispense prescriptions for non-controlled
8 prescription drugs authorized by an ~~advanced practice nurse~~ Advanced
9 Practice Registered Nurse or physician assistant, not located in
10 ~~Oklahoma~~ this state, provided that they are licensed in the state in
11 which they are actively prescribing.

12 ~~C.~~ D. 1. Pharmacists may only dispense prescriptions for
13 controlled dangerous substances prescribed by an ~~advanced practice~~
14 ~~nurse or physician assistant~~ Advanced Practice Registered Nurse
15 ~~licensed in the State of Oklahoma and supervised by an Oklahoma-~~
16 ~~licensed practitioner~~ this state who meets the criteria in paragraph
17 1 or 2 of subsection A of this section.

18 2. Pharmacists may only dispense prescriptions for controlled
19 dangerous substances prescribed by a physician assistant licensed in
20 this state pursuant to a practice agreement.

21 SECTION 6. AMENDATORY 59 O.S. 2021, Section 567.3a, is
22 amended to read as follows:

23 Section 567.3a. As used in the Oklahoma Nursing Practice Act:

24 1. "Board" means the Oklahoma Board of Nursing;

1 2. "The practice of nursing" means the performance of services
2 provided for purposes of nursing diagnosis and treatment of human
3 responses to actual or potential health problems consistent with
4 educational preparation. Knowledge and skill are the basis for
5 assessment, analysis, planning, intervention, and evaluation used in
6 the promotion and maintenance of health and nursing management of
7 illness, injury, infirmity, restoration or optimal function, or
8 death with dignity. Practice is based on understanding the human
9 condition across the human lifespan and understanding the
10 relationship of the individual within the environment. This
11 practice includes execution of the medical regime including the
12 administration of medications and treatments prescribed by any
13 person authorized by state law to so prescribe;

14 3. "Registered nursing" means the practice of the full scope of
15 nursing which includes, but is not limited to:

- 16 a. assessing the health status of individuals, families
17 and groups,
- 18 b. analyzing assessment data to determine nursing care
19 needs,
- 20 c. establishing goals to meet identified health care
21 needs,
- 22 d. planning a strategy of care,
- 23 e. establishing priorities of nursing intervention to
24 implement the strategy of care,

- f. implementing the strategy of care,
- g. delegating such tasks as may safely be performed by others, consistent with educational preparation and that do not conflict with the provisions of the Oklahoma Nursing Practice Act,
- h. providing safe and effective nursing care rendered directly or indirectly,
- i. evaluating responses to interventions,
- j. teaching the principles and practice of nursing,
- k. managing and supervising the practice of nursing,
- l. collaborating with other health professionals in the management of health care,
- m. performing additional nursing functions in accordance with knowledge and skills acquired beyond basic nursing preparation, and
- n. delegating those nursing tasks as defined in the rules of the Board that may be performed by an advanced unlicensed assistive person;

4. "Licensed practical nursing" means the practice of nursing under the supervision or direction of a registered nurse, licensed physician or dentist. This directed scope of nursing practice includes, but is not limited to:

- a. contributing to the assessment of the health status of individuals and groups,

- b. participating in the development and modification of the plan of care,
- c. implementing the appropriate aspects of the plan of care,
- d. delegating such tasks as may safely be performed by others, consistent with educational preparation and that do not conflict with the Oklahoma Nursing Practice Act,
- e. providing safe and effective nursing care rendered directly or indirectly,
- f. participating in the evaluation of responses to interventions,
- g. teaching basic nursing skills and related principles,
- h. performing additional nursing procedures in accordance with knowledge and skills acquired through education beyond nursing preparation, and
- i. delegating those nursing tasks as defined in the rules of the Board that may be performed by an advanced unlicensed assistive person;

5. "Advanced Practice Registered Nurse" means a licensed Registered Nurse:

- a. who has completed an advanced practice registered nursing education program in preparation for one of

- 1 four recognized ~~advanced practice registered nurse~~
2 Advanced Practice Registered Nurse roles,
- 3 b. who has passed a national certification examination
4 recognized by the Board that measures the ~~advanced~~
5 ~~practice registered nurse~~ Advanced Practice Registered
6 Nurse role and specialty competencies and who
7 maintains recertification in the role and specialty
8 through a national certification program,
- 9 c. who has acquired advanced clinical knowledge and
10 skills in preparation for providing both direct and
11 indirect care to patients; however, the defining
12 factor for all Advanced Practice Registered Nurses is
13 that a significant component of the education and
14 practice focuses on direct care of individuals,
- 15 d. whose practice builds on the competencies of
16 Registered Nurses by demonstrating a greater depth and
17 breadth of knowledge, a greater synthesis of data, and
18 increased complexity of skills and interventions, and
- 19 e. who has obtained a license as an Advanced Practice
20 Registered Nurse in one of the following roles:
21 Certified Registered Nurse Anesthetist, Certified
22 Nurse-Midwife, Clinical Nurse Specialist, or Certified
23 Nurse Practitioner.
24

1 Only those persons who hold a license to practice advanced
2 practice registered nursing in this state shall have the right to
3 use the title "Advanced Practice Registered Nurse" and to use the
4 abbreviation "APRN". Only those persons who have obtained a license
5 in the following disciplines shall have the right to fulfill the
6 roles and use the applicable titles: Certified Registered Nurse
7 Anesthetist and the abbreviation "CRNA", Certified Nurse-Midwife and
8 the abbreviation "CNM", Clinical Nurse Specialist and the
9 abbreviation "CNS", and Certified Nurse Practitioner and the
10 abbreviation "CNP".

11 It shall be unlawful for any person to assume the role or use
12 the title Advanced Practice Registered Nurse or use the abbreviation
13 "APRN" or use the respective specialty role titles and abbreviations
14 or to use any other titles or abbreviations that would reasonably
15 lead a person to believe the user is an Advanced Practice Registered
16 Nurse, unless permitted by the Oklahoma Nursing Practice Act. Any
17 individual doing so shall be guilty of a misdemeanor, which shall be
18 punishable, upon conviction, by imprisonment in the county jail for
19 not more than one (1) year or by a fine ~~of~~ not less than One Hundred
20 Dollars (\$100.00) nor more than One Thousand Dollars (\$1,000.00), or
21 by both such imprisonment and fine for each offense;

22 6. "Certified Nurse Practitioner" ~~is~~ means an Advanced Practice
23 Registered Nurse who performs in an expanded role in the delivery of
24 health care:

- a. consistent with advanced educational preparation as a Certified Nurse Practitioner in an area of specialty,
- b. functions within the Certified Nurse Practitioner scope of practice for the selected area of specialization, and
- c. is in accord with the standards for Certified Nurse Practitioners as identified by the certifying body and approved by the Board.

A Certified Nurse Practitioner shall be eligible, in accordance with the scope of practice of the Certified Nurse Practitioner, to obtain recognition as authorized by the Board to prescribe, as defined by the rules promulgated by the Board pursuant to ~~this section and subject to the medical direction of a supervising physician~~ Section 567.4a of this title and Section 1 of this act.

This authorization shall not include dispensing drugs, but shall not preclude, subject to federal regulations, the receipt of, the signing for, or the dispensing of professional samples to patients.

The Certified Nurse Practitioner accepts responsibility, accountability, and obligation to practice in accordance with usual and customary advanced practice registered nursing standards and functions as defined by the scope of practice/role definition statements for the Certified Nurse Practitioner;

1 7. a. "Clinical Nurse Specialist" ~~is~~ means an Advanced
2 Practice Registered Nurse who holds:

3 (1) a master's degree or higher in nursing with
4 clinical specialization preparation to function
5 in an expanded role,

6 (2) specialty certification from a national
7 certifying organization recognized by the Board,

8 (3) an Advanced Practice Registered Nurse license
9 from the Board, and

10 (4) any nurse holding a specialty certification as a
11 Clinical Nurse Specialist valid on January 1,
12 1994, granted by a national certifying
13 organization recognized by the Board, shall be
14 deemed to be a Clinical Nurse Specialist under
15 the provisions of the Oklahoma Nursing Practice
16 Act.

17 b. In the expanded role, the Clinical Nurse Specialist
18 performs at an advanced practice level which shall
19 include, but not be limited to:

20 (1) practicing as an expert clinician in the
21 provision of direct nursing care to a selected
22 population of patients or clients in any setting,
23 including private practice,

- (2) managing the care of patients or clients with complex nursing problems,
- (3) enhancing patient or client care by integrating the competencies of clinical practice, education, consultation, and research, and
- (4) referring patients or clients to other services.

- c. A Clinical Nurse Specialist in accordance with the scope of practice of such Clinical Nurse Specialist shall be eligible to obtain recognition as authorized by the Board to prescribe, as defined by the rules promulgated by the Board pursuant to ~~this section, and subject to the medical direction of a supervising physician~~ Section 567.4a of this title and Section 1 of this act. This authorization shall not include dispensing drugs, but shall not preclude, subject to federal regulations, the receipt of, the signing for, or the dispensing of professional samples to patients.
- d. The Clinical Nurse Specialist accepts responsibility, accountability, and obligation to practice in accordance with usual and customary advanced practice nursing standards and functions as defined by the scope of practice/role definition statements for the Clinical Nurse Specialist;

1 8. ~~"Nurse-Midwife" is~~ "Certified Nurse-Midwife" means a nurse
2 who has received an Advanced Practice Registered Nurse license from
3 the Oklahoma Board of Nursing who possesses evidence of
4 certification according to the requirements of the American College
5 of Nurse-Midwives.

6 A Certified Nurse-Midwife in accordance with the scope of
7 practice of such Certified Nurse-Midwife shall be eligible to obtain
8 recognition as authorized by the Board to prescribe, as defined by
9 the rules promulgated by the Board pursuant to ~~this section and~~
10 ~~subject to the medical direction of a supervising physician~~ Section
11 567.4a of this title and Section 1 of this act. This authorization
12 shall not include the dispensing of drugs, but shall not preclude,
13 subject to federal regulations, the receipt of, the signing for, or
14 the dispensing of professional samples to patients.

15 The Certified Nurse-Midwife accepts responsibility,
16 accountability, and obligation to practice in accordance with usual
17 and customary advanced practice registered nursing standards and
18 functions as defined by the scope of practice/role definition
19 statements for the Certified Nurse-Midwife;

20 9. "Nurse-midwifery practice" means providing management of
21 care of normal newborns and women, antepartally, intrapartally,
22 postpartally and gynecologically, occurring within a health care
23 system which provides for medical consultation, medical management
24

1 or referral, and is in accord with the standards for nurse-midwifery
2 practice as defined by the American College of Nurse-Midwives;

3 10. a. "Certified Registered Nurse Anesthetist" is an
4 Advanced Practice Registered Nurse who:

- 5 (1) is certified by the National Board of
6 Certification and Recertification for Nurse
7 Anesthetists as a Certified Registered Nurse
8 Anesthetist within one (1) year following
9 completion of an approved ~~certified registered~~
10 ~~nurse-anesthetist~~ Certified Registered Nurse
11 Anesthetist education program, and continues to
12 maintain such recertification by the National
13 Board of Certification and Recertification for
14 Nurse Anesthetists, and
15 (2) administers anesthesia in collaboration with a
16 medical doctor, an osteopathic physician, a
17 podiatric physician or a dentist licensed in this
18 state and under conditions in which timely onsite
19 consultation by such doctor, osteopath, podiatric
20 physician or dentist is available.

21 b. A Certified Registered Nurse Anesthetist, in
22 collaboration with a medical doctor, osteopathic
23 physician, podiatric physician or dentist licensed in
24 this state, and under conditions in which timely, on-

1 site consultation by such medical doctor, osteopathic
2 physician, podiatric physician or dentist is
3 available, shall be authorized, pursuant to rules
4 adopted by the Oklahoma Board of Nursing, to order,
5 select, obtain and administer legend drugs, Schedules
6 II through V controlled substances, devices, and
7 medical gases only when engaged in the preanesthetic
8 preparation and evaluation; anesthesia induction,
9 maintenance and emergence; and postanesthesia care. A
10 Certified Registered Nurse Anesthetist may order,
11 select, obtain and administer drugs only during the
12 perioperative or periobstetrical period.

13 c. A Certified Registered Nurse Anesthetist who applies
14 for authorization to order, select, obtain and
15 administer drugs shall:

- 16 (1) be currently recognized as a Certified Registered
17 Nurse Anesthetist in this state,
- 18 (2) provide evidence of completion, within the two-
19 year period immediately preceding the date of
20 application, of a minimum of fifteen (15) units
21 of continuing education in advanced pharmacology
22 related to the administration of anesthesia as
23 recognized by the National Board of Certification
24 and Recertification for Nurse Anesthetists, and

1 (3) complete and submit a notarized application, on a
2 form prescribed by the Board, accompanied by the
3 application fee established pursuant to this
4 section.

5 d. The authority to order, select, obtain and administer
6 drugs shall be terminated if a Certified Registered
7 Nurse Anesthetist has:

8 (1) ordered, selected, obtained or administered drugs
9 outside of the Certified Registered Nurse
10 Anesthetist scope of practice or ordered,
11 selected, obtained or administered drugs for
12 other than therapeutic purposes, or

13 (2) violated any provision of state laws or rules or
14 federal laws or regulations pertaining to the
15 practice of nursing or the authority to order,
16 select, obtain and administer drugs.

17 e. The Oklahoma Board of Nursing shall notify the State
18 Board of Pharmacy after termination of or a change in
19 the authority to order, select, obtain and administer
20 drugs for a Certified Registered Nurse Anesthetist.

21 f. The Board shall provide by rule for biennial
22 application renewal and reauthorization of authority
23 to order, select, obtain and administer drugs for
24 Certified Registered Nurse Anesthetists. At the time

1 of application renewal, a Certified Registered Nurse
2 Anesthetist shall submit documentation of a minimum of
3 eight (8) units of continuing education, completed
4 during the previous two (2) years, in advanced
5 pharmacology relating to the administration of
6 anesthesia, as recognized by the ~~Council on~~
7 ~~Recertification of Nurse Anesthetists or the Council~~
8 ~~on Certification of Nurse Anesthetists~~ National Board
9 of Certification and Recertification for Nurse
10 Anesthetists.

11 g. This paragraph shall not prohibit the administration
12 of local or topical anesthetics as now permitted by
13 law. Provided further, nothing in this paragraph
14 shall limit the authority of the Board of Dentistry to
15 establish the qualifications for dentists who direct
16 the administration of anesthesia.

17 h. As used in this paragraph, "collaboration" means an
18 agreement between a medical doctor, osteopathic
19 physician, podiatric physician or dentist performing
20 the procedure or directly involved with the procedure
21 and the Certified Registered Nurse Anesthetist working
22 jointly toward a common goal providing services for
23 the same patient. This collaboration involves the
24 joint formulation, discussion and agreement of the

1 anesthesia plan by both parties, and the collaborating
2 medical doctor, osteopathic physician, podiatric
3 physician or dentist performing the procedure or
4 directly involved with the procedure and that
5 collaborating physician shall remain available for
6 timely onsite consultation during the delivery of
7 anesthesia for diagnosis, consultation, and treatment
8 of medical conditions;

9 11. "Supervising physician" means an individual holding a
10 current license to practice as a physician from the State Board of
11 Medical Licensure and Supervision or the State Board of Osteopathic
12 Examiners, who supervises a Certified Nurse Practitioner, a Clinical
13 Nurse Specialist, or a Certified Nurse-Midwife who has not obtained
14 independent prescriptive authority under Section 1 of this act, and
15 who is not in training as an intern, resident, or fellow. ~~To be~~
16 ~~eligible to supervise such Advanced Practice Registered Nurse, such~~
17 The supervising physician shall remain in compliance with the rules
18 promulgated by the State Board of Medical Licensure and Supervision
19 or the State Board of Osteopathic Examiners;

20 12. "Supervision of an Advanced Practice Registered Nurse with
21 prescriptive authority" means overseeing and accepting
22 responsibility for the ordering and transmission by a Certified
23 Nurse Practitioner, a Clinical Nurse Specialist, or a Certified
24 Nurse-Midwife who has not obtained independent prescriptive

1 authority under Section 1 of this act of written, telephonic,
2 electronic or oral prescriptions for drugs and other medical
3 supplies, subject to a defined formulary; and

4 13. "Advanced Unlicensed Assistant" means any person who has
5 successfully completed a certified training program approved by the
6 Board that trains the Advanced Unlicensed Assistant to perform
7 specified technical skills identified by the Board in acute care
8 settings under the direction and supervision of the Registered Nurse
9 or Licensed Practical Nurse.

10 SECTION 7. AMENDATORY 59 O.S. 2021, Section 567.4a, is
11 amended to read as follows:

12 Section 567.4a. The Oklahoma Board of Nursing may grant
13 prescriptive authority through the Advanced Practice Registered
14 Nurse license to Certified Nurse Practitioners, Clinical Nurse
15 Specialists, and Certified Nurse-Midwives who meet the requirements
16 for prescriptive authority identified by law and in the Board's
17 rules. The rules regarding prescriptive authority recognition
18 promulgated by the Oklahoma Board of Nursing pursuant to ~~paragraphs~~
19 ~~6 through 9, 11 and 12 of~~ this section, Section 567.3a of this
20 title, and Section 1 of this act shall:

21 1. Define the procedure for documenting supervision by a
22 supervising physician licensed in Oklahoma to practice by the State
23 Board of Medical Licensure and Supervision or the State Board of
24 Osteopathic Examiners as defined in Section 567.3a of this title of

1 a Certified Nurse Practitioner, Clinical Nurse Specialist, or
2 Certified Nurse-Midwife who has not obtained independent
3 prescriptive authority under Section 1 of this act. Such procedure
4 shall include a written statement that defines appropriate referral,
5 consultation, and collaboration between the Advanced Practice
6 Registered Nurse, recognized to prescribe as defined in ~~paragraphs 6~~
7 ~~through 9, 11 and 12 of~~ Section 567.3a of this title, and the
8 supervising physician. The written statement shall include a method
9 of assuring availability of the supervising physician through direct
10 contact, telecommunications or other appropriate electronic means
11 for consultation, assistance with medical emergencies, or patient
12 referral. The written statement shall be part of the initial
13 application and the renewal application submitted to the Board for
14 recognition for prescriptive authority for the Advanced Practice
15 Registered Nurse. Changes to the written statement shall be filed
16 with the Board within thirty (30) days of the change and shall be
17 effective on filing;

18 2. Define the procedure for documenting independent
19 prescriptive authority for Certified Nurse Practitioners, Clinical
20 Nurse Specialists, and Certified Nurse-Midwives who have obtained
21 independent prescriptive authority under Section 1 of this act;

22 3. Define minimal requirements for initial application for
23 prescriptive authority which shall include, but not be limited to,
24 evidence of completion of a minimum of forty-five (45) contact hours

1 or three (3) academic credit hours of education in
2 pharmacotherapeutics, clinical application, and use of
3 pharmacological agents in the prevention of illness, and in the
4 restoration and maintenance of health in a program beyond basic
5 registered nurse preparation, approved by the Board. Such contact
6 hours or academic credits shall be obtained within a time period of
7 three (3) years immediately preceding the date of application for
8 prescriptive authority;

9 ~~3.~~ 4. Define minimal requirements for application for renewal
10 of prescriptive authority which shall include, but not be limited
11 to, documentation of a minimum of:

12 a. fifteen (15) contact hours or one (1) academic credit
13 hour of education in pharmacotherapeutics, clinical
14 application, and use of pharmacological agents in the
15 prevention of illness, and in the restoration and
16 maintenance of health in a program beyond basic
17 registered nurse preparation, and

18 b. two (2) hours of education in pain management or two
19 (2) hours of education in opioid use or addiction,
20 unless the Advanced Practice Registered Nurse has
21 demonstrated to the satisfaction of the Board that the
22 Advanced Practice Registered Nurse does not currently
23 hold a valid federal Drug Enforcement Administration
24 registration number,

1 approved by the Board, within the two-year period immediately
2 preceding the effective date of application for renewal of
3 prescriptive authority;

4 ~~4.~~ 5. Require that ~~beginning July 1, 2002,~~ an Advanced Practice
5 Registered Nurse ~~shall demonstrate~~ demonstrates successful
6 completion of a master's degree or higher in ~~a clinical nurse~~
7 ~~specialty~~ one of the following Advanced Practice Registered Nurse
8 roles:

9 a. Certified Nurse Practitioner,

10 b. Clinical Nurse Specialist, or

11 c. Certified Nurse-Midwife,

12 in order to be eligible for initial application for prescriptive
13 authority under the provisions of the Oklahoma Nursing Practice Act;

14 ~~5.~~ 6. Define the method for communicating authority to
15 prescribe or termination of same, and the formulary to the State
16 Board of Pharmacy, all pharmacies, and all registered pharmacists;

17 ~~6.~~ 7. Define terminology used in such rules;

18 ~~7.~~ 8. Define the parameters for the prescribing practices of
19 the Advanced Practice Registered Nurse;

20 ~~8.~~ 9. Define the methods for termination of prescriptive
21 authority for the Advanced Practice Registered Nurse; and

22 ~~9.~~ 10. a. Establish a Formulary Advisory Council that shall
23 develop and submit to the Board recommendations for an
24 exclusionary formulary that shall list drugs or

1 categories of drugs that shall not be prescribed by an
2 Advanced Practice Registered Nurse recognized to
3 prescribe by the Oklahoma Board of Nursing. The
4 Formulary Advisory Council shall also develop and
5 submit to the Board recommendations for practice-
6 specific prescriptive standards for each category of
7 Advanced Practice Registered Nurse recognized to
8 prescribe by the Oklahoma Board of Nursing pursuant to
9 the provisions of the Oklahoma Nursing Practice Act.
10 The Board shall either accept or reject the
11 recommendations made by the Council. No amendments to
12 the recommended exclusionary formulary may be made by
13 the Board without the approval of the Formulary
14 Advisory Council.

15 b. The Formulary Advisory Council shall be composed of
16 twelve (12) members as follows:

17 (1) four members, to include a pediatrician, an
18 obstetrician-gynecological physician, a general
19 internist, and a family practice physician;
20 provided, that three of such members shall be
21 appointed by the Oklahoma State Medical
22 Association, and one shall be appointed by the
23 Oklahoma Osteopathic Association,
24

(2) four members who are registered pharmacists,
appointed by the Oklahoma Pharmaceutical
Association, and

(3) four members, one of whom shall be a Certified
Nurse Practitioner, one of whom shall be a
Clinical Nurse Specialist, one of whom shall be a
Certified Nurse-Midwife, and one of whom shall be
a current member of the Oklahoma Board of
Nursing, all of whom shall be appointed by the
Oklahoma Board of Nursing.

- c. All professional members of the Formulary Advisory
Council shall be in active clinical practice, at least
fifty percent (50%) of the time, within their defined
area of specialty. The members of the Formulary
Advisory Council shall serve at the pleasure of the
appointing authority for a term of three (3) years.
The terms of the members shall be staggered. Members
of the Council may serve beyond the expiration of
their term of office until a successor is appointed by
the original appointing authority. A vacancy on the
Council shall be filled for the balance of the
unexpired term by the original appointing authority.
- d. Members of the Council shall elect a chair and a ~~vice-~~
~~chair~~ vice chair from among the membership of the

1 Council. For the transaction of business, at least
2 seven members, with a minimum of two members present
3 from each of the identified categories of physicians,
4 pharmacists and ~~advanced practice registered nurses~~
5 Advanced Practice Registered Nurses, shall constitute
6 a quorum. The Council shall recommend and the Board
7 shall approve and implement an initial exclusionary
8 formulary on or before January 1, 1997. The Council
9 and the Board shall annually review the approved
10 exclusionary formulary and shall make any necessary
11 revisions utilizing the same procedures used to
12 develop the initial exclusionary formulary.

13 SECTION 8. AMENDATORY 59 O.S. 2021, Section 567.5a, is
14 amended to read as follows:

15 Section 567.5a. A. All applicants for a license to practice as
16 an Advanced Practice Registered Nurse shall be subject to Section
17 567.8 of this title.

18 B. An applicant for an initial license to practice as an
19 Advanced Practice Registered Nurse shall:

20 1. Submit a completed written application and appropriate fees
21 as established by the Oklahoma Board of Nursing;

22 2. Submit a criminal history records check that complies with
23 Section 567.18 of this title;

24 3. Hold a current Registered Nurse license in this state;

1 4. Have completed an advanced practice registered nursing
2 education program in one of the four ~~advanced practice registered~~
3 ~~nurse~~ Advanced Practice Registered Nurse roles and a specialty area
4 recognized by the Board. Effective January 1, 2016, the applicant
5 shall have completed an accredited graduate level advanced practice
6 registered nursing education program in at least one of the
7 following population foci: family/individual across the lifespan,
8 adult-gerontology, neonatal, pediatrics, women's health/gender-
9 related, or psychiatric/mental health;

10 5. Be currently certified in an advanced practice specialty
11 certification consistent with educational preparation and by a
12 national certifying body recognized by the Board; and

13 6. Provide any and all other evidence as required by the Board
14 in its rules.

15 C. The Board may issue a license by endorsement to an Advanced
16 Practice Registered Nurse licensed under the laws of another state
17 if the applicant meets the qualifications for licensure in this
18 state. An applicant by endorsement shall:

19 1. Submit a completed written application and appropriate fees
20 as established by the Board;

21 2. Hold a current Registered Nurse license in this state;

22 3. Hold recognition as an Advanced Practice Registered Nurse in
23 a state or territory;

1 4. Have completed an advanced practice registered nursing
2 education program in one of the four roles and a specialty area
3 recognized by the Board. Effective January 1, 2016, the applicant
4 shall have completed an accredited graduate level advanced practice
5 registered nursing education program in at least one of the
6 following population foci: family/individual across the lifespan,
7 adult-gerontology, neonatal, pediatrics, women's health/gender-
8 related, or psychiatric/mental health;

9 5. Be currently certified in an advanced practice specialty
10 certification consistent with educational preparation and by a
11 national certifying body recognized by the Board;

12 6. Meet continued competency requirements as set forth in Board
13 rules; and

14 7. Provide any and all other evidence as required by the Board
15 in its rules.

16 D. The Board may issue prescriptive authority recognition by
17 endorsement to an Advanced Practice Registered Nurse licensed as an
18 APRN-CNP, APRN-CNS, or APRN-CNM under the laws of another state if
19 the applicant meets the requirements set forth in this section. An
20 applicant for prescriptive authority recognition by endorsement
21 shall:

22 1. Submit a completed written application and appropriate fees
23 as established by the Board;

1 2. Hold current Registered Nurse and Advanced Practice
2 Registered Nurse licenses (APRN-CNP, APRN-CNS, or APRN-CNM) in the
3 state;

4 3. Hold current licensure or recognition as an Advanced
5 Practice Registered Nurse in the same role and specialty with
6 prescribing privileges in another state or territory;

7 4. Submit documentation verifying successful completion of a
8 graduate level advanced practice registered nursing education
9 program that included an academic course in pharmacotherapeutic
10 management, and didactic and clinical preparation for prescribing
11 incorporated throughout the program;

12 5. Submit a written statement from an Oklahoma licensed
13 physician supervising prescriptive authority as required by the
14 Board in its rules, or submit documentation that the applicant meets
15 the requirements for independent prescriptive authority under
16 Section 1 of this act;

17 6. Meet continued competency requirements as set forth in Board
18 rules; and

19 7. Provide any and all other evidence as required by the Board
20 in its rules.

21 E. An Advanced Practice Registered Nurse license issued under
22 this section shall be renewed concurrently with the registered nurse
23 license, provided that qualifying criteria continue to be met.

1 F. The Board may reinstate a license as set forth in Board
2 rules.

3 SECTION 9. AMENDATORY 63 O.S. 2021, Section 2-312, as
4 amended by Section 2, Chapter 184, O.S.L. 2022 (63 O.S. Supp. 2023,
5 Section 2-312), is amended to read as follows:

6 Section 2-312. A. A physician, podiatrist, optometrist or a
7 dentist who has complied with the registration requirements of the
8 Uniform Controlled Dangerous Substances Act, in good faith and in
9 the course of such person's professional practice only, may
10 prescribe and administer controlled dangerous substances, or may
11 cause the same to be administered by medical or paramedical
12 personnel acting under the direction and supervision of the
13 physician, podiatrist, optometrist or dentist, and only may dispense
14 controlled dangerous substances pursuant to the provisions of
15 Sections 355.1 and 355.2 of Title 59 of the Oklahoma Statutes.

16 B. A veterinarian who has complied with the registration
17 requirements of the Uniform Controlled Dangerous Substances Act, in
18 good faith and in the course of the professional practice of the
19 veterinarian only, and not for use by a human being, may prescribe,
20 administer, and dispense controlled dangerous substances and may
21 cause them to be administered by an assistant or orderly under the
22 direction and supervision of the veterinarian.

23 C. 1. An ~~advanced practice nurse~~ Advanced Practice Registered
24 Nurse who is recognized to prescribe by the Oklahoma Board of

1 Nursing as ~~an advanced registered nurse practitioner, clinical nurse~~
2 ~~specialist or certified nurse-midwife,~~ a Certified Nurse
3 Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife
4 but who has not obtained independent prescriptive authority under
5 Section 1 of this act and therefore is subject to medical direction
6 by a supervising physician, pursuant to Section 567.3a of Title 59
7 of the Oklahoma Statutes, and who has complied with the registration
8 requirements of the Uniform Controlled Dangerous Substances Act, in
9 good faith and in the course of professional practice only, may
10 prescribe and administer Schedule III, IV and V controlled dangerous
11 substances.

12 2. An Advanced Practice Registered Nurse who is recognized to
13 prescribe by the Oklahoma Board of Nursing as a Certified Nurse
14 Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife
15 who has obtained independent prescriptive authority under Section 1
16 of this act, and who has complied with the registration requirements
17 of the Uniform Controlled Dangerous Substances Act, in good faith
18 and in the course of professional practice only, may prescribe and
19 administer Schedule III, IV, and V controlled dangerous substances.

20 D. An ~~advanced practice nurse~~ Advanced Practice Registered
21 Nurse who is recognized to order, select, obtain and administer
22 drugs by the Oklahoma Board of Nursing as a ~~certified registered~~
23 ~~nurse-anesthetist~~ Certified Registered Nurse Anesthetist pursuant to
24 Section 353.1b of Title 59 of the Oklahoma Statutes and who has

1 complied with the registration requirements of the Uniform
2 Controlled Dangerous Substances Act, in good faith and in the course
3 of such practitioner's professional practice only, may order,
4 select, obtain and administer Schedules II through V controlled
5 dangerous substances in a preanesthetic preparation or evaluation;
6 anesthesia induction, maintenance or emergence; or postanesthesia
7 care setting only. A ~~certified registered nurse anesthetist~~
8 Certified Registered Nurse Anesthetist may order, select, obtain and
9 administer such drugs only during the perioperative or
10 periobstetrical period.

11 E. A physician assistant who is recognized to prescribe by the
12 State Board of Medical Licensure and Supervision under the medical
13 direction of a supervising physician, pursuant to Section 519.6 of
14 Title 59 of the Oklahoma Statutes, and who has complied with the
15 registration requirements of the Uniform Controlled Dangerous
16 Substances Act, in good faith and in the course of professional
17 practice only, may prescribe and administer Schedule II through V
18 controlled dangerous substances.

19 SECTION 10. This act shall become effective November 1, 2025.
20

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